

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
FELIPE MONTEROSA,

Plaintiff,

- against -

AMENDED
VERIFIED COMPLAINT

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, P.O./SGT. RODRIGUEZ,
P.O. FORD, P.O. MOYLES, P.O. JOHN
DOE nos. 1-10,

Index No.:

Defendants.
-----X

Plaintiff, by his attorney, NORA CONSTANCE MARINO, ESQ.
complaining of the Defendants herein, respectfully show this Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff FELIPE MONTEROSA ("MONTEROSA ") was and still is a resident of the County of Queens, State of New York.

2. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK ("CITY") was and still is a Municipal Corporation, duly organized and existing under and by virtue of the law of the State of New York.

3. That at all times hereinafter mentioned, Defendant, NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and still is a Municipal Corporation, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned, the Defendant RODRIGUEZ

was an agent, servant, and/or employee of defendant NYPD.

5. That at all times hereinafter mentioned, the Defendant FORD was an agent, servant, and/or employee of defendant NYPD.

6. That at all times hereinafter mentioned, the Defendant MOYLES was an agent, servant, and/or employee of defendant NYPD.

7. That at all times hereinafter mentioned, the Defendant Police Officers "JOHN DOES nos. 1-10", names being fictitious as names are unknown at this time, were and still are members of the NYPD, and were employees of NYPD and its police department, and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for Defendants NYPD.

8. That all times hereinafter mentioned Defendant NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

9. That at all times hereinafter mentioned, the Defendant NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

10. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with NYPD and under color of the state law.

11. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, plaintiffs herein served a Notice of Claim in writing upon the defendants.

12. That a 50-H hearing was held of all plaintiffs.

13. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the plaintiff.

FACTS COMMON TO ALL CAUSES OF ACTION

14. That on or about the 4th day of December 2016, Plaintiff MONTEROSA was lawfully in and about the general vicinity of 101 Wooster Street, between Spring Street and Prince Street, County of New York, State of New York.

15. That on or about the 4th day of December 2016, Plaintiff MONTEROSA was lawfully and peacefully protesting at the aforementioned location, when the Defendants NYPD, RODRIGUEZ, FORD, MOYLES and Police Officers JOHN DOES Nos. 1-10, (all Defendants collectively referred to herein as "DEFENDANTS"), wrongfully detained, arrested, frisked, searched, assaulted, touched, battered and verbally abused Plaintiff without justification, authorization, provocation or cause.

16. That the Plaintiff did not violate any law, rule, or regulation, or acted in any way that would justify said actions, detention.

17. That defendants arrested Plaintiff MONTEROSA.

18. That the wrongful, unjust, and unlawful apprehension, arrest and detention were carried out without probable cause.

19. That the wrongful, unjust, and unlawful apprehension, arrest and detention were carried out without reasonable suspicion.

20. That the wrongful, unjust, and unlawful apprehension, arrest and detention were carried out without cause of any sort.

21. That the wrongful, unjust, and unlawful apprehension and detention were carried out without any justifiable reason whatsoever.

22. That at all relevant times, Defendants acted forcibly in detaining Plaintiff.

23. That thereafter, after the unlawful detention, Plaintiff MONTEROSA was removed from the scene of the wrongful detention and was unlawfully arrested by defendants, and was taken to a police precinct or some other type of holding area.

24. That throughout this period of time, Plaintiff was wrongfully unlawfully and unjustifiably held under arrest, deprived of his liberty.

25. That said arrest constituted a false arrest and false imprisonment and deprived Plaintiff of his personal freedom and civil rights, as Plaintiff never committed any crime or violation to warrant such action.

26. That Defendants, their officers, agents, servants and/or employees were responsible for Plaintiff's arrest, assault and detention during this period of time.

27. That at all times mentioned the unlawful, wrongful and false arrest of Plaintiffs was without right and without probable or reasonable cause.

28. That the Defendants acted with a knowing, willful, wanton, malicious, gross, reckless, unlawful, unreasonable and flagrant disregard of Plaintiff's rights, privileges, welfare and well-being and were guilty of egregious

and gross misconduct towards him.

29. That all of the foregoing occurred without any fault or provocation of the part of the Plaintiff.

30. That Plaintiff was charged with Harassment in violation of section 240.26 of the NYS Penal Code.

31. That all charges against Plaintiff were subsequently dropped and/or dismissed.

32. That the District Attorney declined to prosecute the plaintiff for any of the charges alleged by the defendants.

33. That by reason of the foregoing, Plaintiff has suffered damages.

FIRST CAUSE OF ACTION

DEPRIVATION OF PLAINTIFFS' RIGHTS UNDER THE FOURTH, FIFTH, AND FOURTEENTH AMENDMENTS OF THE UNITED STATES CONSTITUTION, AND NEW YORK STATE LAW AND THE NEW YORK STATE CONSTITUTION

34. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

35. Defendants used excessive force, handcuffed, deprived Plaintiff of his liberty, freedom, and constitutional rights, despite the fact that Plaintiff had not committed a crime or violation.

36. Defendants detained Plaintiff and arrested Plaintiff MONTEROSA with the express intent of preventing Plaintiff from further expressing his First, Fourth, and Fourteenth Amendment rights under the United States Constitution and Article I, § 6, 8, 12 rights to free speech and liberty under the

New York State Constitution and detained and took Plaintiff into custody against his will.

37. That despite the fact that Defendants knew that there was no probable cause to believe that Plaintiff committed any crime, one or more than one of the Defendants authorized and approved the formal arrest of the Plaintiff.

38. That the Defendant officers arrested Plaintiff despite the fact that they knew that the no crimes or violations were committed and that there was no probable cause or justification for such an arrest and/or detention.

39. That at all times, the officers acted within the scope of their employment of Defendants NYPD and under the authority of color of state law as police officers.

40. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and New York State Law and the New York State Constitution.

41. Although the Defendants knew that detaining and arresting Plaintiff when they had no right to do so, in violation of Plaintiff's constitutional rights, the Defendants processed the Plaintiff, generating misleading and false accusatory instruments in order to lay charges against Plaintiff, even though Defendants knew or had reason to know that they were making an illegal arrest.

42. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological

nature.

SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION
UNDER NEW YORK STATE LAW

43. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

44. Defendant NYPD negligently hired, trained, supervised, and retained the defendant officers; Defendant NYPD was careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.

45. As a result of this negligent hiring, training, supervision, overseeing, and retention, Plaintiff has suffered and continues to suffer damages, constitutional violations, as well as other damages.

THIRD CAUSE OF ACTION AGAINST DEFENDANT POLICE DEPARTMENT
MONELL CLAIM PURSUANT TO 42 U.S.C § 1981, 1983, 1985, 1986
AND RESPONDEAT SUPERIOR

46. Plaintiff repeats, reiterates and realleges each and every allegation contained herein as if fully set forth at length herein.

47. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and

cooperation and under the supervisory authority of Defendant NYPD.

48. Defendant NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

49. Defendants detained, arrested, assaulted, battered, and victimized Plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

50. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or County of New York, and/or City of New York.

51. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention and/or arrest.

52. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature.

**FOURTH CAUSE OF ACTION AGAINST DEFENDANT POLICE DEPARTMENT
MUNICIPAL AND/OR GOVERNMENTAL LIABILITY**

53. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

54. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the Plaintiff; and were otherwise reckless, careless, and negligent.

55. That as a result of the above referenced negligence; Plaintiff was caused to sustain damages and his constitutional rights were violated.

56. That as a result of the above, the Plaintiff demands judgment against the Defendants NYPD in the amount which exceeds the jurisdiction of all lower courts.

FIFTH CAUSE OF ACTION

EXCESSIVE FORCE

57. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

58. Plaintiff did not resist the orders during the above described incident and did not take any actions necessitating the use of excessive physical force by Defendants.

59. As a direct and proximate result of the unlawful excessive force used against Plaintiff by Defendants deprived Plaintiff of his Constitutional rights in violation of the Fourth, Eighth and Fourteenth Amendments of the Constitution and are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

60. Defendant officers used excessive force against Plaintiff with knowledge that Plaintiff did not commit a crime and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or grounds therefore.

61. That as a result of the foregoing, Plaintiff demands judgment against the Defendants in the amount which exceeds the jurisdiction of all lower courts.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

62. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

63. That on or about December 4, 2016, Defendant officers were employees, agents and/or servants of NYPD.

64. That on or about December 4, 2016, one of or more than one of the

Defendant officers prepared formal accusatory instruments, with the knowledge that no crime or violation had occurred.

65. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiff with malice and the intent of depriving Plaintiffs of his liberty and right to not have his person seized knowing they had no cause or grounds to do so.

66. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiff with the intent to deprive Plaintiff of his right to free speech and other constitutional freedoms, with malice as they were aware that Plaintiff had said constitutional rights.

67. That Defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid pain and suffering, defamation, incarceration and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless and negligent.

SEVENTH CAUSE OF ACTION

ABUSE OF PROCESS

68. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

69. Without Plaintiff's consent, one of ore more than one of the Defendant officers harmfully and offensively touched Plaintiffs by grabbing him, restraining him, handcuffing him, and unlawfully and unconstitutionally deprived the Plaintiff of his liberty and freedom.

70. The Defendants abused their authority and abused their position; Defendants abused and violated the public trust and in particular the trust of Plaintiff. Defendants had no right under the laws of the land to detain, arrest, harass, incarcerate, or prosecute the Plaintiff, yet they chose to regardless. The Defendant officers who did not detain, arrest, harass, incarcerate, or prosecute the Plaintiff, should there be any, are liable to Plaintiff for their failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the Plaintiff.

EIGHTH CAUSE OF ACTION

INFLECTION OF EMOTIONAL DISTRESS

71. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

72. Defendants intentionally and dcliberately inflicted emotional distress upon Plaintiff; defendants negligently inflicted emotional distress upon Plaintiff; by maliciously detaining him, grabbing him, restraining him, handcuffing him, falsely arresting him, and depriving the Plaintiff of his liberty and freedom, and in abusing Plaintiff.

NINTH CAUSE OF ACTION**NEGLIGENCE**

73. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

74. That the aforesaid Defendants, without cause or provocation, negligently, carelessly, negligently, and recklessly detained and arrested the Plaintiff despite knowing that no laws, rules, or regulations were violated, without grounds, and without cause.

TENTH CAUSE OF ACTION**PUNITIVE DAMAGES**

75. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

76. The acts, conduct and behavior of the Defendants warrant punitive damages.

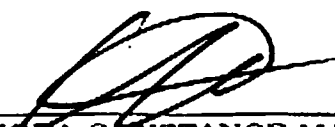
77. The direct and proximate results of the Defendants' acts as they are set forth above in the facts and in each cause of action set forth above, are that Plaintiff suffered severe and permanent injuries of a physical, psychological, and economic nature.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, economic loss,

and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, costs, and disbursements.

Dated: March 8 2018
Nassau County, NY

Yours, etc.,
LAW OFFICES OF NORA CONSTANCE MARINO

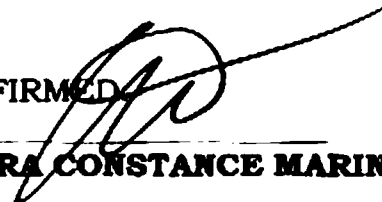

BY: NORA CONSTANCE MARINO, ESQ.
Attorneys for Plaintiff
FELIPE MONTEROSA
175 East Shore Road, Suite 230
Great Neck, NY 11023
516-829-8399
nora@marinojustice.com

ATTORNEY VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

NORA CONSTANCE MARINO, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for FELIPE MONTEROSA in the within action; that I have read the foregoing *Amended* **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county then that which your deponent maintains her office.

DATED: March 8, 2018
Nassau County, NY

AFFIRMED 
NORA CONSTANCE MARINO

SUPREME COURT: NEW YORK INDEX NO.: 155872/17

FELIPE MONTEROSA,

*plaintiff.**- against -*THE CITY OF NEW YORK, the NEW YORK CITY POLICE DEPARTMENT,
P.O./SGT. RODRIQUEZ, P.O. FORD, P.O. MOYLES, P.O. JOHN DOE nos. 1-10,*defendants.***AMENDED COMPLAINT**

Law Offices Of
NORA CONSTANCE MARINO
Attorney for Claimants/plaintiffs
Office and Post Office Address, Telephone
175 East Shore Road, Suite 230
Great Neck, New York 11023
PHONE: 516.829.8399
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 20

*Nora Constance Marino***To :**Service of a copy of the within
is hereby admitted.

Dated: 20

Attorney(s) for:**PLEASE TAKE NOTICE :**☐ NOTICE that the within is a (certified) true copy of aOF ENTRY: duly entered in the office of the clerk of the within named court on 20☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to theSETTLEMENT HON. One of the judges of the within named Court, at
:

on 20 at M.

Dated: , 20